HARBOURLIGHT MEDIA

Clearance Guide: Environmental Claims

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1. What this guide covers

This guide covers claims that a product, its packaging or the business behind it is better for the environment. It is used by the Clearance Executive who reviews the copy, from the first read until the issue is settled, and by Agency Liaisons advising agencies before they submit.

It arises most often in less healthy food and alcohol copy about packaging, and now and then in betting, credit and medicines copy about how a business is run.

Whether a campaign's spots may be transmitted is a separate question, settled by the category's own code. This guide is about the copy.

2. How it usually shows up

- absolute wording such as eco-friendly, carbon neutral or zero waste
- packaging described as fully recyclable, plastic-free or made from recycled materials
- planet imagery that implies a benefit the copy does not state
- a claim about one part of a product presented as true of the whole

3. What the executive checks

For an environmental claim, the Clearance Executive checks, in this order:

1. Identify every environmental claim, whether spoken, written or implied by the images.
2. Ask which part of the product, the pack or the business each claim covers, and check the copy says so.
3. Check any absolute claim is backed by evidence covering the whole product and its full life cycle.
4. Ask for independent verification of carbon neutral, recyclable and similar claims.
5. Check that any qualification is on screen with the claim, not left to a website.

4. Evidence to ask for

- recycling certificates for each part of the pack
- an independent verification or a sustainability report
- the basis of any carbon claim, and whether it relies on offsetting

5. When the copy can be cleared

The copy can be cleared once each claim states exactly what it covers and the evidence supports it for the whole of that part. The usual amendment is to qualify the line - which part is recyclable, or what is carbon neutral and on what basis - or to remove absolute wording.

6. What the agency should do

Before submitting, and when answering a query, the agency should:

- Say exactly which part of the product or the pack a claim covers.
- Avoid absolute wording unless the evidence covers the whole life cycle.
- Send certificates and verification with the copy.
- Make sure the images promise no more than the words.

7. When to ask for a legal review

Ask for a legal review when a claim relies on offsetting, when the verification is not independent, or when the agency maintains an unqualified claim.

The Legal Adviser records the review on the campaign, and its view carries more weight than any other note.

8. Recording the outcome

The outcome is recorded in an update on the campaign: the copy amended, the evidence accepted, or the copy cleared as submitted.

The assessment then recommends one of the decisions open for the campaign, and a Clearance Controller decides, as the Advertising Clearance Policy describes. Copy that cannot be cleared is rejected, whatever its spots' results.